

****Damage to Image and Risky Contracts****

****Member of the Privacy Authority:** "Companies could trigger termination clauses. But the web forgets quickly, even scandals like this."******

****Interview with Guido Scorza, member of the Guarantor for the protection of personal data****

(by Francesco Specchia, Libero, December 20, 2023)

The Internet does not forgive, but it forgets quickly. Chiara Ferragni and her "repentance" with tears over the Pandoro for the camera will manage to get by thanks to the hamster-like memory of her 29 million followers. Thus spoke Guido Scorza, lawyer, professor of "law of new technologies and privacy," and member of the Board of the Guarantor for the protection of personal data.

****Lawyer, with the bubble of the branded Pandoro of the Ferragnez having burst, what will its impact be in terms of reputation?****

"This all stems from an antitrust provision and - given the reaction of the Ferragnez, who have built their communication on social commitment - the impact is certainly significant, as was the case with Google/Cambridge Analytica (personal data of 87 million Facebook users collected without consent used for political purposes, ed.), where the situation was even devastating. Of course, after about a year, everything was forgotten..."

Well, the case is different. Here the influencer is risking her credibility with the companies with which she has million-dollar contracts...

"Here, compared to Google, there is Ferragni's face, linked to her ethical campaigns. There could be, with the companies, potential contractual termination clauses triggered due to compromised image. What suffers is the business model, ruthless for the followers who believed that by buying that branded Pandoro for 9 euros, they were proportionally contributing to the purchase of hospital materials for children. And then the situation worsened when it was discovered that, after the public outcry and the return of the one million euros in charity, there had been a precedent for Ferragni..."

****The Easter Eggs. Another fake charity discovered by the tenacity of Selvaggia Lucarelli.****

"Exactly. A precedent almost identical to the Pandoro. And keep in mind that the Antitrust has only expressed itself within the limits allowed by law. However, I repeat: the memory of the web has a double layer. On one hand, any information remains on the web indelibly to the point of requiring specialized entities to intervene regarding the right to be forgotten. On the other hand, even if a scandal like this can represent a living scar in the flesh of the followers, users' memory tends to fade. And we must ask ourselves whether the scar will heal over time."

****Will it heal?****

"Yes, it will heal. Today Ferragni has only lost 16,000 followers. The web is fragile in every sense, even in the wave of anger towards influencers who disappoint by pretending to make a donation and instilling the belief that, by purchasing an overpriced Pandoro, we have made a great charitable act. To sick children, beware."

****What does the change in Ferragni's media strategy mean: apologies on camera, tearful eyes, disheveled hair and clothes, a donation of 1 million to the hospital (she practically just turned over the check received from Balocco)?****

"That video is a sort of 'operous repentance'; it was the only forced strategy to get out of the impasse. Then came the blow of the eggs. Usually, in these cases, those in the eye of the storm stop, maintain a low profile, and go under the radar while waiting for a new opportunity."

****A file could be opened by the Milan Prosecutor's Office regarding the case. Are there precedents?****

"Many, if you look for them in the archives of the Authorities. We are talking about 'deceptiveness of promotional messaging' and 'unfair commercial practices.' The situation could worsen only with the establishment of intent, upon complaint by the injured party. It must be demonstrated that there was trickery and deceit, and there must be someone who felt harmed. The case is reminiscent of certain TV sales from the 80s. That said, I don't think many would sue over a 9-euro deceptive Pandoro. We will see how the Prosecutor's Office will move."

****Do you believe Ferragni really wants to appeal the Authority's ruling?****

“I don't think so.”

****In America, the land of wild business, how would a similar case have been handled?****

“The Federal Trade Commission - their Antitrust - would have acted exactly like our Authority, perhaps not with the same speed (we are more reactive). The same goes for EU countries where the discipline of consumer codes of European origin prevails...”